

LEGISLATION & THE REGULATORY STATE - CLASS 3

Riggs v. Palmer - Bondi v. Vanderstok - Garland v. Cargill

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PART I - BRIEFS

1. Riggs v. Palmer

115 N.Y. 506, 22 N.E. 188 (1889). New York Court of Appeals. Earl, J. Submitted June 21, 1889; decided October 8, 1889. Review of judgments entered on a referee's report and affirmed at General Term.

Parties

Plaintiffs / appellants: Philo Riggs, as guardian ad litem, and Francis B. Palmer's two daughters, Mrs. Riggs and Mrs. Preston. They sought to prevent Elmer from receiving the estate and to have the property pass to them. **Defendants / respondents:** Elmer E. Palmer, Francis's grandson and residuary legatee, together with the estate administrator. Elmer claimed the property under Francis's formally valid and probated will.

Procedural History

Elmer was tried and convicted of second-degree murder for poisoning Francis and was serving his sentence in a state reformatory when the civil action began. Francis's daughters sued to cancel and annul the provisions favoring Elmer. A referee found that Elmer intentionally murdered Francis to prevent revocation of the will and accelerate his inheritance, yet concluded that the will statutes required dismissal of the complaint. Judgment was entered on the referee's report, and the General Term affirmed.

The daughters appealed to the New York Court of Appeals. The court accepted the facts already found and reversed the General Term and referee judgments. It entered judgment enjoining Elmer and the administrator from using the estate for Elmer's benefit, declaring the devise and bequest to Elmer ineffective, and declaring the daughters the owners of the estate subject to the support charges created for Elmer's mother and Francis's widow.

Material Facts

On August 13, 1880, Francis executed a will that gave small legacies to his daughters and the residue of his farm and considerable personal property to Elmer, subject to support for Elmer's mother. The will provided a gift over to the daughters if Elmer survived Francis and then died under age, unmarried, and without issue. Francis later married Mrs. Bresee and signed an ante-nuptial agreement charging her lifetime support against the farm.

Elmer lived with Francis as a family member. At age sixteen, Elmer knew the will favored him and knew that Francis had manifested an intention to revoke that benefit. Elmer willfully poisoned Francis to prevent revocation, cause the will to become operative, and obtain immediate possession of the property. The governing will and inheritance statutes contained no express provision disqualifying a beneficiary who murdered the testator. A literal application of those statutes would transfer the residue to Elmer.

Question Presented

May a beneficiary acquire property under a formally valid and probated will after intentionally murdering the testator to prevent revocation and accelerate the inheritance, when the governing statutes contain no express slayer provision?

Holding

Substantive holding: Elmer was barred from acquiring any interest in Francis's estate. Statutes governing wills and devolution operate together with the common-law maxim that no person may obtain property through his own crime.

Procedural disposition: The Court of Appeals reversed the judgments below and entered judgment for the daughters on the facts already found.

Reasoning

Source of law and competing positions: The court interpreted New York's statutes governing the making, probate, effect, alteration, and revocation of wills against general common-law maxims and the statutes' purposes. Elmer relied on the enacted text: Francis was dead, the will had been made in the prescribed form and admitted to probate, and the statutes literally directed the property to him. The daughters relied on the will statutes' purpose and the settled principle that a claimant cannot found a property right on his own deliberate wrong.

The majority treated legislative intention as part of the statute's legal meaning. The will statutes aimed to carry out a testator's legally expressed wishes and secure the orderly, peaceable, and just devolution of property. A legislature pursuing those ends would exclude a beneficiary who killed the testator to activate the will. The general words therefore did not govern this unforeseen collateral consequence.

The court called this method rational or equitable interpretation. General language may be restrained when its application would produce a consequence contrary to the enactment's reason. The opinion's examples supplied the method: a statute authorizing a man to try causes in his manor excludes his own case, and a law punishing anyone who draws blood in the street excludes a barber performing a medical procedure. In each example, purpose determines the sensible reach of general words.

A second and independent source of law reinforced that construction. Common-law maxims forbid a person to profit by fraud, take advantage of his own wrong, base a claim on iniquity, or acquire property by crime. The majority regarded those maxims as background law that controls statutes and wills unless legislation supersedes them. Prior law had applied the same principle to deny life-insurance proceeds to a beneficiary who murdered the insured and to invalidate testamentary provisions produced by fraud, undue influence, immorality, or public-policy violations.

The causal connection between Elmer's crime and the claimed property made the maxim decisive. Elmer might have died first, and Francis might have revoked the gift. By killing Francis, Elmer made the will speak at the chosen time and converted a contingent expectation into an immediate claim. The judgment prevented that acquisition. The majority characterized the result as a rule governing title rather than an additional criminal punishment because Elmer never possessed the estate before the murder.

Justice Gray's dissent: Gray treated testamentary succession as a field comprehensively controlled by statute. The enacted provisions specified the exclusive methods for altering or revoking a will, and Francis completed none of them. For Gray, equitable and natural-justice principles supplied reasons for the legislature to enact a slayer rule; they supplied no judicial power to alter the statutory disposition. He also viewed disinheritance as an added penalty after the criminal law had imposed the punishment authorized for murder and warned that the court was effectively making a different will for Francis.

Narrow holding and significance: A legatee who intentionally kills the testator to activate the gift cannot acquire the resulting property. The case presents a direct conflict between a textually specified outcome and the legal force of statutory purpose, absurd-consequence reasoning, and common-law principles that the legislature left intact.

1L explanation: The majority and dissent disagree about the law available to a court. Earl reads the statute together with its purpose and inherited common-law maxims; that combined law excludes Elmer's claim. Gray reads the detailed will statute as the complete decision rule; the valid, unrevoked will therefore controls until the legislature creates a slayer rule. Their dispute concerns judicial authority and statutory meaning, rather than disagreement over Elmer's conduct or moral desert.

2. Bondi v. Vanderstok - weapon-parts-kit issue

604 U.S. 458, 145 S. Ct. 857 (2025). U.S. Supreme Court. Gorsuch, J. Argued October 8, 2024; decided March 26, 2025. Certiorari to 86 F.4th 179. This brief follows the assigned excerpt and addresses the kit issue under 18 U.S.C. Section 921(a)(3)(A).

Parties

Petitioners: the Attorney General and federal officials responsible for the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF), defending ATF's 2022 rule. **Respondents:** individual gun owners, at-home gunsmiths, firearm manufacturers, dealers, and allied organizations that brought a pre-enforcement Administrative Procedure Act challenge to the rule.

Procedural History

Acting under authority to prescribe regulations necessary to carry out the Gun Control Act of 1968 (GCA), ATF issued a 2022 rule addressing privately assembled firearms. The rule's weapon-parts-kit provision interpreted the statutory definition of a firearm to cover a kit designed to, or readily capable of being completed, assembled, restored, or otherwise converted to, expel a projectile by explosive action. ATF stated that ready conversion depends on factors including time, ease, expertise, equipment, and the availability of additional parts.

Before enforcement began, respondents filed what they described as a facial challenge under the APA, 5 U.S.C. Section 706(2)(C). They argued that the GCA categorically excludes weapon parts kits, making ATF's kit provision an exercise of authority beyond the statute. On summary judgment, the Northern District of Texas agreed and vacated the rule. The Fifth Circuit largely affirmed, holding that a parts kit could never satisfy the statutory requirements regardless of completeness or ease of assembly. 680 F. Supp. 3d 741; 86 F.4th 179. The Supreme Court granted certiorari, reversed, and remanded.

Material Facts

Congress enacted the GCA in 1968 after finding that existing law allowed criminals to obtain largely untraceable guns too easily. The Act requires many firearm importers, manufacturers, and dealers to obtain federal licenses, preserve sales records, perform background checks, and mark firearms with serial numbers. Those requirements keep firearms from prohibited buyers and allow law enforcement to trace a recovered gun through manufacture and transfer records.

Section 921(a)(3)(A) defines a firearm to include 'any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive.' New manufacturing technologies, including reinforced polymers and 3D printing, made home assembly practical. Available kits span a broad range: some omit essential parts and demand specialized expertise, uncommon equipment, substantial effort, and considerable time; others contain every component for a pistol and can be completed in roughly half an hour with common tools.

Some sellers treated kits as outside the GCA and therefore sold them without licenses, background checks, sales records, or serial numbers. Law-enforcement submissions of untraceable 'ghost guns' for federal tracing rose from about 1,600 in 2017 to more than 19,000 in 2021, and tracing efforts were usually futile.

The record centered on Polymer80's 'Buy Build Shoot' kit. It contained every component needed for a Glock-variant semiautomatic pistol. In an ATF test, a person with no previous exposure to the kit produced a working gun in twenty-one minutes using common tools and publicly available YouTube instructions. The product name and complete component set made its intended combat function apparent when sold.

Question Presented

Does Section 921(a)(3)(A) authorize ATF to regulate at least some weapon parts kits as a 'weapon' that 'may readily be converted' to expel a projectile, thereby defeating respondents' facial claim that ATF lacks authority over every kit?

Holding

Substantive holding: Yes. Some weapon parts kits, including Polymer80's 'Buy Build Shoot' kit, are weapons capable of ready conversion within Section 921(a)(3)(A). ATF's kit provision therefore fits the GCA in at least some applications and survives the facial challenge. **Procedural disposition:** The Supreme Court reversed the Fifth Circuit and remanded for further proceedings.

Reasoning

Source of law, posture, and competing positions: The controlling provisions were the GCA's definition of 'firearm,' ATF's delegated rulemaking authority, and APA review for agency action exceeding statutory authority. The government defended a rule reaching kits that meet the statutory terms. Respondents argued that a collection of unfinished parts can never be a 'weapon,' so every application of the kit rule exceeds ATF's authority. Because respondents did not contest the government's account of their facial burden, the Court treated one valid application as sufficient to defeat the challenge.

The statutory definition contains two requirements. First, the object must qualify as a 'weapon.' Second, the weapon must presently fire, be designed to fire, or be capable of ready conversion to fire a projectile by explosive action. The Polymer80 kit satisfied both.

'Weapon' as an artifact noun: The ordinary meaning of weapon is an instrument intended for offensive or defensive combat. 'Weapon' is also an artifact noun: its application follows an object's intended human function. Ordinary speakers therefore use artifact nouns for unfinished objects whose intended function is clear, such as an author's unfinished novel, a boxed IKEA table awaiting assembly, or a rifle disassembled for cleaning. Polymer80 supplied every necessary component, required about twenty-one minutes of ordinary work, and marketed the product as 'Buy Build Shoot.' Those features made the kit an unfinished instrument of combat and therefore a weapon.

Statutory context: Congress expressly included starter guns within the term weapon. A starter gun fires blanks and can be converted to live fire with a common power tool in less than an hour by a person lacking specialized knowledge. Its inclusion shows that operability at the moment of sale is unnecessary. The alternatives 'is designed to' and 'may readily be converted to' likewise give statutory work to weapons awaiting completion or conversion.

Ready conversion: The starter gun supplies a statutory yardstick. Its express inclusion makes sense because it can be converted to live fire with common tools, ordinary skill, and less than an hour of work. Polymer80's kit demanded no greater time, effort, expertise, or specialized equipment. It therefore met the ready-conversion requirement as well.

The Court left the boundary for later cases. A kit missing essential parts or requiring substantial time, specialized skill, or uncommon equipment may fall beyond the terms weapon and ready conversion. That range of harder applications could support future as-applied challenges; it could not establish that the rule conflicts with the statute in every application. The statute's text, context, and structure resolved the examples before the Court, so lenity and constitutional avoidance supplied no further decision rule.

Justice Jackson's concurrence: Jackson framed the case as a straightforward excess-of-authority inquiry. Congress delegated rulemaking power; a reviewing court identifies the delegation's actual statutory boundary and asks whether the agency crossed it. Once the statute permits the challenged action, disagreement with ATF's discretionary policy choices cannot establish an APA violation.

Justice Thomas's dissent: Thomas read the ordinary meaning of weapon to require an existing instrument usable in combat. On that view, an unfinished parts kit becomes a weapon only after conversion into an operable gun. He distinguished a kit from a disassembled rifle and a starter gun because those objects ordinarily contain functional frames or receivers, and he treated Congress's express inclusion of starter guns as a specific expansion that did not extend to additional unfinished objects. Any remaining ambiguity in this statute with criminal applications would trigger the rule of lenity.

Narrow holding and significance: The Court decided only the facial kit issue. It established that Section 921(a)(3)(A) reaches some sufficiently complete and easily assembled kits. It reserved the classification of more incomplete or labor-intensive products and evaluated neither a specific enforcement action nor every factor in ATF's readiness test.

1L explanation: Start with the litigation posture. Respondents asserted that Congress gave ATF zero authority over weapon parts kits. Polymer80's complete, twenty-one-minute kit defeated that categorical proposition. The majority then proved statutory coverage in sequence: ordinary meaning allowed this unfinished artifact to count as a weapon; the starter-gun example and the statute's three operative alternatives confirmed that reading; and the starter gun supplied the benchmark for ready conversion.

3. Garland v. Cargill

602 U.S. 406, 144 S. Ct. 1613 (2024). U.S. Supreme Court. Thomas, J. Argued February 28, 2024; decided June 14, 2024. Certiorari to 57 F.4th 447.

Parties

Petitioners: Attorney General Merrick Garland and federal officials responsible for ATF, defending the agency's 2018 bump-stock rule. **Respondent:** Michael Cargill, who owned two bump stocks, surrendered them under protest, and challenged ATF's statutory authority under the Administrative Procedure Act.

Procedural History

For years and across several administrations, ATF issued more than ten decisions concluding that a semiautomatic rifle equipped with a bump stock fell outside the federal definition of 'machinegun.' After the October 2017 Las Vegas mass shooting, ATF proposed and then adopted a 2018 rule classifying bump-stock devices as machineguns. The rule repudiated the agency's prior guidance and required owners to destroy or surrender the devices within ninety days to avoid criminal prosecution.

Cargill surrendered two bump stocks and sued under the APA, alleging that ATF exceeded its statutory authority because the devices fall outside 26 U.S.C. Section 5845(b). After a bench trial, the Western District of Texas entered judgment for ATF. 502 F. Supp. 3d 1163. A Fifth Circuit panel affirmed. 20 F.4th 1004. On rehearing en banc, the Fifth Circuit reversed. A majority found at least ambiguity and applied the rule of lenity in Cargill's favor; an eight-judge plurality read the statute as unambiguously excluding bump-stock-equipped rifles. 57 F.4th 447. The Supreme Court granted review to resolve a circuit split and affirmed.

Material Facts

The National Firearms Act defines a machinegun as a weapon that 'shoots, is designed to shoot, or can be readily restored to shoot, automatically more than one shot, without manual reloading, by a single function of the trigger.' 26 U.S.C. Section 5845(b). The definition also covers a part designed and intended to convert a weapon into a machinegun. Federal law sharply restricts civilian possession and transfer of machineguns.

A conventional machinegun can fire multiple rounds, often continuously, from one engagement of the trigger. A semiautomatic rifle fires one round from each engagement. After every shot, its trigger must release, move forward, reset the hammer and disconnector mechanism, and then be engaged again to fire the next round.

Bump firing uses recoil to speed that repeated trigger cycle. The shooter holds the trigger finger stationary while the firing hand permits the rifle to recoil backward, releasing and resetting the trigger. The other hand maintains calibrated forward pressure, moving the rifle and trigger back into the stationary finger to engage the trigger again. This repeats rapidly while the shooter preserves the balance between recoil and forward pressure. A bump stock replaces the rifle's ordinary rear stock with a casing that permits sliding motion and provides a ledge for the trigger finger. It makes the technique easier while preserving a release, reset, and reengagement for every shot.

In October 2017, a gunman using bump-stock-equipped rifles killed fifty-eight people and wounded more than five hundred at an outdoor Las Vegas music festival. Members of Congress introduced legislation directed at bump stocks and devices that accelerate semiautomatic fire; the proposals did not become law. ATF then reversed its interpretation through the 2018 rule and defined 'automatically' and 'single function of the trigger' to include bump-stock operation.

Question Presented

Does a bump stock convert a semiautomatic rifle into a 'machinegun' under Section 5845(b) by enabling the weapon to shoot automatically more than one shot, without manual reloading, by a single function of the trigger?

Holding

Substantive holding: A bump-stock-equipped semiautomatic rifle falls outside Section 5845(b). Each round follows a distinct function of the trigger, and continued bump fire depends on ongoing manual forward pressure beyond the trigger's function. ATF therefore exceeded its statutory authority by classifying bump stocks as machineguns.

Procedural disposition: The Supreme Court affirmed the en banc Fifth Circuit's judgment for Cargill.

Reasoning

Source of law and competing positions: The Court independently interpreted Section 5845(b) in an APA challenge to agency authority. ATF treated a shooter's initial pull as the relevant single function and viewed the ensuing fire-recoil-bump cycle as automatic fire because the shooter's finger can remain stationary. Cargill treated each release, reset, and reengagement of the trigger as a separate function and the shooter's forward pressure as additional manual input.

'Single function of the trigger': Contemporary dictionaries defined function as the mode of action by which an object fulfills its purpose and trigger as the lever that activates a mechanism. The Court therefore identified the physical movement by which the trigger activates the firing mechanism. In a semiautomatic rifle, one engagement releases the hammer and fires one cartridge; the disconnector then captures the hammer until the trigger moves forward and resets. A later shot requires a new engagement after that reset.

The bump stock accelerates those distinct cycles and leaves their number unchanged. For each additional round, recoil moves the rifle away from the stationary finger, the trigger releases and resets, and forward movement bumps the trigger into the finger again. The statute counts trigger functions by the firing mechanism's repeated engagements, regardless of whether the shooter flexes a finger or moves the rifle against a stationary finger. Rapid succession therefore remains a succession of separate functions.

ATF's own definition sharpened the problem. The rule defined a trigger function as a pull or an analogous motion, and ATF conceded that sliding a rifle forward to bump the trigger is an analogous motion. Each forward bump consequently qualifies as its own function. ATF's initial-versus-continuing distinction depended on the beginning of a firing sequence, while the statute asks how many shots each trigger function produces. ATF's theory would also classify manual bump firing without a bump stock as a single-function sequence, even though the agency agreed that an unmodified semiautomatic rifle fires one shot per trigger function.

'Automatically': The syntax requires the single trigger function itself to cause more than one shot automatically. Continued bump fire also requires the shooter's nontrigger hand to maintain the precise forward pressure that returns the rifle to the stationary finger. Excess pressure prevents adequate recoil and reset; insufficient pressure prevents the next engagement. The Court treated that continuing input as an action beyond the trigger's function.

ATF's treatment of the Ithaca Model 37 shotgun supported the same line. Holding the Model 37's trigger while manually pumping the action produces multiple shots, yet ATF classified the weapon outside the machinegun definition because the pump supplies additional manual input. Maintaining calibrated forward pressure for bump fire likewise supplies an additional action. A weapon may automate reloading or another operation and still fail the complete statutory phrase requiring more than one shot automatically from a single trigger function.

Presumption against ineffectiveness: ATF argued that exclusion would let accessories evade Congress's effort to restrict rapid-fire weapons. The majority held that its reading leaves the statute fully operative against traditional machineguns. Congress chose trigger function and automatic operation as the legal criteria; it could have chosen rate of fire or devices that accelerate firing. Statutory purpose could guide application of the enacted line, while the enacted words fixed where that line fell. ATF's own repeated pre-2018 conclusions also showed that this construction preserved a workable machinegun prohibition.

Justice Alito's concurrence: Alito found little practical difference between an M16 and a bump-stock-equipped semiautomatic rifle, yet agreed that the statutory text produced different treatment. He identified legislation amending the definition as the available remedy.

Justice Sotomayor's dissent: Joined by Justices Kagan and Jackson, Sotomayor read 'single function of the trigger' from the shooter's perspective as the single human action initiating a firing sequence. Dictionaries, 1934 hearing testimony from the NRA president, congressional reports equating the phrase with a single pull, and *Staples v. United States* supported that usage. A bump-stock shooter initiates continuous fire once and then maintains forward pressure, just as an M16 shooter maintains backward pressure on the trigger. The dissent treated the bump stock's recoil-driven movement as external automation of repeated trigger manipulation. It also invoked the presumption against ineffectiveness because bump stocks permit roughly 400 to 800 rounds per minute and reproduce the rapid-fire capacity Congress sought to control.

Narrow holding and significance: The holding concerns the statutory machinegun definition and ATF's authority to implement it. The case leaves Congress free to regulate bump stocks through amended legislation and leaves state restrictions untouched. The Court resolved the case through statutory text and firearm mechanics, without deciding a Second Amendment question.

1L explanation: Read the definition as a sequence of required elements. The weapon must produce more than one shot; that result must occur automatically; and one trigger function must cause it. The majority located a new trigger function before every bump-fired round and identified calibrated forward pressure as an additional continuing action. Once either proposition holds, the device falls outside the enacted definition even though its rate of fire can resemble a machinegun.